

SENATE BILL 1771

By Lowe

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7 and Title 13, relative to zoning
outside of municipal boundaries.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 13, Chapter 7, Part 3, is amended by adding the following as a new section:

(a) Notwithstanding this part, a municipality or regional planning commission shall not adopt a zoning plan, ordinance, rule, or regional zoning ordinance, as applicable, exercising jurisdiction over zoning, including development, infrastructure, or land use, outside of the boundaries of a municipality.

(b) This section is effective in a county upon the adoption of a resolution by a majority vote of the county legislative body. Upon adoption of such resolution, an existing zoning plan, ordinance, rule, or regional zoning ordinance adopted under this part exercising jurisdiction over zoning, including development, infrastructure, or land use, outside of the boundaries of a municipality is void and unenforceable. The county and municipality may enter into an interlocal or other agreement for the completion of, or for the process of winding down, development, infrastructure, or land use obligations in progress prior to the adoption of such resolution. A developer may be a party to such an agreement with the consent of the county and municipal governing bodies.

(c) This section:

(1) Applies to counties with a population of less than three hundred forty-one thousand five hundred (341,500), according to the 2020 or a subsequent federal census; and

(2) Does not apply to a county with a metropolitan form of government.

(d) This section does not prohibit a county or municipality from entering into an interlocal agreement for any lawful purpose under state law.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.